

23STLC08229 23STLC08229

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-09

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Case Number: 23STLC08229 Hearing Date: July 9, 2026 Dept: 25

HEARING DATE: Thurs., July 9, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Macadangdang

v. Maravilla, et al.

COMP. FILED: 12-29-23

CASE NUMBER: 23STLC08229

NOTICE: OK

PROCEEDINGS: MOTION

FOR ORDER VACATING AND SETTING ASIDE DISMISSAL OF CASE

MOVING PARTY: Plaintiff Josie Macadangdang

RESP. PARTY: Defendants Novalita Maravilla and
California Care Referral Services, Inc.

MOTION TO

SET ASIDE DISMISSAL

(CCP § 473(b))

TENTATIVE RULING:

The

Court GRANTS Josie Macadangdang's motion to vacate and set aside the dismissal

entered against them.

The

November 20, 2025 dismissal is hereby SET ASIDE AND VACATED.

Macadangdang

is to give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

June 17, 2026 ☐ Late ☐ None

REPLY: Filed

July 1, 2026 ☐

Late ☐ None

ANALYSIS:

Josie Macadangdang sued Novalita Maravilla and California

Care Referral Services, Inc. over unpaid wages.

Macadangdang failed to appear for the November 20, 2025 trial of the action, and the Court granted Maravilla and CCRS's request to dismiss Macadangdang's complaint without prejudice.

Macadangdang now moves to have that dismissal vacated under Code of Civil Procedure section 473, subdivision (b), because the dismissal was the result of surprise. The Court GRANTS the motion.

Under Code of Civil Procedure section 473, subdivision

(b), a party can seek relief from a dismissal caused by its own mistake,

inadvertence, surprise, or excusable neglect.

Macadangdang seeks relief under the “surprise” prong of the statute. “Surprise” refers to a condition in which the party is unexpectedly placed, to their detriment and through no fault of their own, which ordinary care could not have guarded against. (State Farm Fire & Casualty Co. v. Pietak (2001) 90 Cal.App.4th 600, 611.)

Macadangdang's spouse, George Clifton, experienced a medical emergency on the morning of trial, which prevented Macadangdang from appearing. Macadangdang called both opposing counsel and the Court that morning to explain the situation.

This may or

may not be surprise, but it is, in any event, excusable neglect. Neglect is excusable if a reasonably prudent person under similar circumstances might have made the same error. (Austin v. Los Angeles Unified School District (2016) 244 Cal.App.4th 918, 929.) The moving party must show a reasonable excuse for the dismissal. (Shapiro v.

Clark (2008) 164 Cal.App.4th 1128, 1141–1142.) Macadangdang has done that here. Macadangdang provides evidence of Clifton's

ongoing medical condition and attests to Clifton having a medical emergency the morning of trial. Macadangdang has a reasonable excuse for not appearing at trial, and a reasonably prudent person under similar circumstances may have done the same thing Macadangdang did.

Accordingly, the Court GRANTS Macadangdang's motion. The November 20, 2025 dismissal is hereby SET ASIDE AND VACATED.

Macadangdang is to give notice.